

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased: 4/13/22

-----X
JERMAINE JORDAN,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, Det. NELSON NIN,
UNDERCOVER POLICE OFFICER 1, and OFFICERS
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers
unknowable by Plaintiff, Individually and in their
official capacities,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
April 13, 2022



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, NYC Law Dept.
New York, New York 10007;
Det. NELSON NIN, Shield 5300, NARCB BX, and Undercover Police Officer 1
1 Police Plaza, NY NY 10038 Room 1310

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
JERMAINE JORDAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. NELSON NIN,
UNDERCOVER POLICE OFFICER 1, and OFFICERS
JOHN AND JAMES DOE, names being fictitious and meant
to designate additional offending officers unknowable by
Plaintiff, Individually and in their official capacities,

Defendants.

-----X

Plaintiff, by his attorney, Jonathan L. Gleit, Esq., complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF JERMAINE JORDAN

1. At the time of the commencement of this action, plaintiff JERMAINE JORDAN was and still is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.

3. That at all times herein mentioned, Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about June 25, 2021, Det. NELSON NIN was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about June 25, 2021, at approximately 4:30 P.M., Det. NELSON NIN, Shield 5300, was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about June 25, 2021, UNDERCOVER POLICE OFFICER 1, whose name is necessarily unknowable by Plaintiff, was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
8. That on and about June 25, 2021, at approximately 4:30 P.M., UNDERCOVER POLICE OFFICER 1 was working and acting within the scope of his/her employment as a Police Officer, and under the color of law.
9. That on and about June 25, 2021, OFFICERS JOHN AND JAMES DOE, whose names are presently unknowable by Plaintiff, but are necessarily known to Defendants

by virtue of his/her/their involvement with the arrest of Plaintiff, was employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

10. That on and about June 25, 2021, at approximately 4:30 P.M., POLICE OFFICERS JOHN AND JAMES DOE were working and acting within the scope of his/her/their employment as Police Officers, and under the color of law.

11. That on or about June 25, 2021 at approximately 4:30 P.M., at or near the vicinity of 1405 Webster Avenue, Bronx, New York, the Plaintiff JERMAINE JORDAN was improperly arrested and confined without knowledge of warrant, without privilege, proper authority or justification, having no reason in law or in fact to arrest or confine JERMAINE JORDAN, incorrectly arrested as JERMAIN JORDAN.

12. That immediately prior to the time mentioned above, the plaintiff JERMAINE JORDAN was lawfully present at the above location, conversing with another male individual.

13. That at said time and place two individuals approached Plaintiff and his male acquaintance and attempted to converse, which Plaintiff ignored.

14. That immediately thereafter, Plaintiff's acquaintance and one of the individuals went into an abutting store, and thereafter Plaintiff's acquaintance was arrested.

15. That shortly thereafter Plaintiff was approached and aggressively questioned by Police Officers, and Plaintiff, having done nothing wrong and not being in possession of any illicit items, protested his innocence, which was ignored.

16. That the Defendants, their agents, servants and/or employees arrested the Plaintiff JERMAINE JORDAN without any basis in law or fact and without reasonable, probable or just cause or justification.

17. That the Defendants there and then searched Plaintiff, and despite Plaintiff having no illicit items in his possession, continued to detain Plaintiff and took his property.

18. That the defendants, their agents, servants and/or employees arrested the plaintiff JERMAINE JORDAN without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

19. That Defendants, their agents, servants and/or employees continued to detain Plaintiff JERMAINE JORDAN and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

20. That OFFICERS JOHN AND JAMES DOE, failed to intercede in the arrest of Plaintiff despite having known, or having should have have known, his arrest was unlawful and lacking in probable cause.
21. That the Defendants, their agents, servants and / or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff JERMAINE JORDAN, who was aware of his unlawful detention and confinement and took his property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.
22. That following his arrest, after being transported in hand restraints to the 42nd Police Precinct, 830 Washington Avenue, Bronx, New York, Plaintiff was placed in hand and leg restrains, or shackles, for protesting his innocence.
23. That thereafter, Plaintiff's privacy was invaded and he was humiliated by a strip search which disclosed no secreted items or things. Apparently not satisfied with that search, Plaintiff overheard an officer say "check his rectum", and plaintiff was again strip searched, this time invasively, which again, yielded no secreted items.
24. That the defendants Det. NELSON NIN, UNDERCOVER POLICE OFFICER 1, and POLICE OFFICERS JOHN AND JAMES DOE did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff

thereby initiating and causing him to suffer an unjust prosecution that defendants had no reasonable expectation would succeed, as it was without probable cause.

25. That the CITY OF NEW YORK and the named defendants did falsely and wrongfully arrest plaintiff without probable or reasonable cause nor knowledge of warrant, intended to and did confine plaintiff without his consent, which non-privileged confinement plaintiff was consciously aware of and did initiate a criminal proceeding without probable cause, maliciously.

26. That all criminal charges brought against plaintiff, which were brought under Docket number CR-009171-21BX in the Criminal Court of the City of New York, Bronx County regarding the incidents of June 25, 2021, were dismissed on January 20, 2022, and the criminal prosecution was terminated in Plaintiff's favor.

27. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, without any probable cause or reasonable basis to do so for nefarious, unlawful reasons such as the fulfillment of arrest quotas, advancement of employment opportunities and the subjugate minority population without reprimand to the offending officers.

28. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein.

29. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

30. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

31. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department. Other officers have made the same allegations in open court.

32. Furthermore patterns of the NYPD and their officers alleging persons were involved in the sale of narcotics when the arrested persons were not, in fact, in any way involved in the sales of narcotics, and there was no probable cause to arrest said persons has occurred to such individuals as Tomas Robles on June 28, 2018 as well as hundreds of other innocent persons know to the defendants by virtue of the dismissal of all charges against such persons, and convictions for police officers lying or making false statements under oath, for, amongst other reasons, a lack of evidence, as well as complaints, claims and actions brought against said officers, and upon the CITY OF NEW YORK's own tabulations and investigations.

33. That more specifically, Defendant Det. NELSON NIN has exhibited a pattern of arresting innocent persons for merely being in the vicinity of other persons who were alleged to have engaged in drug transactions, despite not being in possession of any illicit items, or participating in any way in any illicit activities. As a non-comprehensive

example, the following persons have asserted allegations substantially similar to

Plaintiff: Kristen Alaimo, Carlos Rivera, Reginald Wilson, Warnell Carroll, Minerva

Cancel, who also asserted, like Plaintiff, that he was wrongfully strip searched.

34. Additionally on October 1, 2015 the New York City Department of Investigation

Office of the Inspector General for the NYPD issued a report, which is incorporated

herein and can be found at <http://www.nyc.gov/html/oignypd/assets/downloads/>

[pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf](http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf). That report determined that the

New York City Police Department routinely fails to discipline officers who have

engaged in misconduct, and fails to adequately track instances of abuse of power, and

fails to properly train officers, and despite those findings, and perfunctory attempts at

remediation, the practice continues unabated, and was evidenced by the The Report of

the Independent Panel on the Disciplinary System of the New York City Police

Department, found at <https://www.independentpanelreportnypd.net> and

incorporated herein.

35. That no negligence or actions on the part of the Plaintiff contributed to the

occurrences alleged herein in any manner whatsoever.

36. The herein above described actions and omissions, engaged in under the color

of law by the defendants, their supervisors and commanders and the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, institutionalized procedure and act, deprived the Plaintiff JERMAINE JORDAN of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Sixth Amendment right to a fair trial, the Eighth Amendment right to be free from cruel and unusual punishment, the 14th Amendment's right to be free of a deprivation of liberty without due process and equal protection, and as applicable under Title 42 U.S.C. 1983, et seq.

37. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

38. That as a result of the foregoing, the Plaintiff JERMAINE JORDAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JERMAINE JORDAN

39. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 38 as though more fully set forth herein.

40. That on February 7, 2022, by Order of Justice Mitchell J. Danziger under Bronx Supreme Court Index No. 801168/2022E, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented to the defendant CITY OF NEW YORK, by presenting a copy thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

41. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant,

42. That said Order required the CITY OF NEW YORK to Notice Plaintiff of a General Municipal Law §50h hearing within 60 days thereof, which time period has passed without such a Notice being made, and therefore the requirement of such a hearing has been waived.

43. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

44. That on or about June 25, 2021 at approximately 4:30 P.M., at or near the vicinity of 1405 Webster Avenue, Bronx, New York, the Plaintiff JERMAINE JORDAN was improperly arrested and confined without knowledge of warrant, privilege, proper authority or justification or reasonable or probable cause, having no reason in law or in fact to arrest JERMAINE JORDAN.

45. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff JERMAINE JORDAN of Due Process under Law.

46. That the acts of the Defendants, CITY OF NEW YORK, their agents, servants and / or employees, Det. NELSON NIN, UNDERCOVER POLICE OFFICER 1, POLICE OFFICERS JOHN AND JAMES DOE were acts of discrimination, were racist, and improper, and that the Defendants' actions amounted to False Arrest, and the Defendants were otherwise careless, reckless and negligent.

47. That the Plaintiff JERMAINE JORDAN, being aware of his unjust confinement, suffered severe and serious physical, emotional trauma, damages and injuries due to the negligence, carelessness and recklessness of Defendants CITY OF NEW YORK, Det.

NELSON NIN, UNDERCOVER POLICE OFFICER 1 and POLICE OFFICERS JOHN
AND JAMES DOE.

48. That this cause of action falls within one or more of the exceptions as set forth in
CPLR Section 1602.

49. That as a result of the foregoing, the plaintiff JERMAINE JORDAN was damaged
in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JERMAINE JORDAN

50. That Plaintiff repeats, reiterates and realleges each and every allegation
contained in paragraphs enumerated 1 through 49 as though more fully set forth herein.

51. That Plaintiff was physically restrained, by both hand and leg restraints, which
unwanted touching constituted assaults and battery upon his person, and was further
physically and invasively searched, which also constituted assaults and battery upon
his person and well as being a gross violation of his person and privacy and was an
affront to all civilized behavior and norms of human decency.

52. That this cause of action falls within one or more of the exceptions as set forth in
CPLR Section 1602.

53. That as a result of the foregoing, the plaintiff JERMAINE JORDAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JERMAINE JORDAN

54. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 53 as though more fully set forth herein.

55. That defendants, their agents, servants and/or employees initiated a prosecution of plaintiff and continued to deny and threaten plaintiff's liberty and freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

56. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the plaintiff due to racism and prejudice and without any basis in law or fact.

57. That the defendants Det. NELSON NIN, UNDERCOVER POLICE OFFICER 1 and OFFICERS JOHN AND/OR JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and/or falsely and/or misleadingly provide sworn testimony or statements against Plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

58. That all criminal charges brought against plaintiff, which were brought under Docket number CR-009171-21BX in the Criminal Court of the City of New York, Bronx County regarding the incidents of June 25, 2021, were dismissed on January 20, 2022, and the criminal prosecution was terminated in Plaintiff's favor.

59. That by reason of the aforementioned, the Defendants actions amounted to a malicious prosecution of JERMAINE JORDAN.

60. As a result of the malicious prosecution, Plaintiff's liberty was threatened for a period of approximately two hundred and eight days and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately two hundred and eight days.

61. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

62. That as a result of the foregoing, the Plaintiff JERMAINE JORDAN was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF JERMAINE JORDAN

63. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 62 as though more fully set forth herein.

64. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

65. That the Defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals.

66. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, Plaintiff JERMAINE JORDAN was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be

prevented from attending to Plaintiff's usual vocation and avocations; all to the

Plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

67. That this cause of action falls within one or more of the exceptions as set forth in
CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First
Second, Third, Fourth and Fifth Causes of Action, and inclusive of punitive damages,
and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all
lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
April 13, 2022



By: JONATHAN L. GLEIT, ESQ.
Attorney for Plaintiff

JERMAINE JORDAN

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, NYC Law Dept.
New York, New York 10007;
Det. NELSON NIN, Shield 5300 NARCBX, and Undercover Police Officer
1 Police Plaza, NY NY 10038 Room 1310

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

JERMAINE JORDAN

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is presently outside of the county wherein your affirmant maintains his office.

DATED: Bronx, N.Y.

April 13, 2022



JONATHAN L. GLEIT, ESQ.